

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

July 11, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich (via Zoom), Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne (via Zoom), Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Segrave moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”.

[CA] Minutes from Regular Meeting of the Governing Body on June 27, 2022. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for proposed Specific Purpose Sales Tax (6th Penny) Projects to be completed in the Downtown Development District. Comments were made by the following members of the governing body: Mr. Segrave. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing.

ORDINANCE – 3rd READING – Amending Unified Development Code Section 1.4.4.f, Industrial Services Uses, to create a definition for Data Center and to amend definitions for clarification and amending Table 5-1, Zoning District Uses, of Unified Development Code Section 5.1.4, Districts and Uses, to classify the Permissibility of Data Center. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4450)

ORDINANCE – 3rd READING – Amending Section 9.08.010(B)(3), Disturbance of the Peace and Disturbance of Property, Chapter 9.08, Offenses Against Public Peace and Decency, of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4451)

ORDINANCE – 2nd READING – Amending Section 2.40.020, Appointment of Judges – Powers Generally, of Chapter 2.40, Municipal Court, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

Comments were made by the following members of the governing body: Mr. Johnson and Mr. Segrave.

ORDINANCE – 2nd READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. White moved to approve on second reading, seconded by Mr. Roybal. Comments were made by the following members of the governing body: Mayor Collins and Mr. Johnson.

ORDINANCE – 1st READING – Amending various sections of Chapter 13.12, Sewer System, of Title 13, Public Services, of the Municipal Code of the City of Cheyenne, Wyoming to allow for exceptions to sewage disposal requirements – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Authorizing the submission of an application by the City of Cheyenne for federal funding through the Transportation Alternatives Program administered by the Wyoming Department of Transportation for the purpose of the construction of two (2) high intensity activated cross walk systems located across Western Hills Boulevard at McCormick Junior High School and across Pershing Boulevard at McCann Avenue. Motion (per Consent Agenda) carried. (#6255)

[CA] RESOLUTION – Acknowledging receipt of the East Cheyenne Community Park Master Plan Report and Appendices – referred to Public Services Committee. (Sponsors – Mr. Esquibel & Mr. Johnson)

[CA] Professional Services Agreement between the City of Cheyenne and Warehouse Twenty One for the Destination Wayfinding Signage Plan, Phase III Fabrication and Installation Services Project (Specific Purpose Sales Tax and Greenway Donations). Motion (per Consent Agenda) carried (in an amount not to exceed \$29,185.00). (#7548)

[CA] Industrial and Economic Development Services Agreement between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development (LEADS) (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$75,000.00). (#7549)

[CA] Parking Lot Lease Agreement between the City of Cheyenne and Riverstone Bank for the lease of parking spaces at 1716 Thomes Avenue (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$14,416.80). (#7550)

Purchase and sale agreement for real property between Retail Properties C, LLC and the City of Cheyenne for the acquisition of land for a future fire station location (General Fund). Mr. White moved to approve in an amount not to exceed \$548,082.60, seconded by Mr. Esquibel. Mr. White moved to amend by substitute dated July 1, 2022, seconded by Mr. Segrave. Motion to amend by substitute dated July 1, 2022 failed. Voting “no” – all members of the governing body. Mr. White moved to amend by substitute dated July 11, 2022, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute

carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mayor Collins. (#7551)

[CA] Agreement for the purchase, sale and exchange of lands between the City of Cheyenne and US 30 BP LLC for the acquisition of land for a future fire station location (Specific Purpose Sales Tax). Motion (per Consent Agenda) carried. (#7552)

Memorandum of Agreement between the City of Cheyenne, Reiman Corporation and AVI, P.C. for removal and replacement of curb ramps within the right-of-way for the Evers Blvd. Reconstruction Project (2019-2022 One Percent Sales Tax). Mr. White moved to approve, seconded by Mr. Roybal. Mr. White moved to amend by substitute dated July 11, 2022, seconded by Mr. Roybal. Motion to amend by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. Comments were made by the following members of the governing body: Mayor Collins, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Mr. Roybal and Mr. Segrave. (#7553)

Professional Services Contract between the City of Cheyenne and Woodhouse Roden Ames & Brennan, LLC for City Public Defender Services. Mr. White advised the item was reviewed under other items for the agenda at the July 5, 2022 Finance Committee meeting, therefore, provisions of Title 2 of the City Code have been met. Mr. White moved to approve in an amount not to exceed \$82,400.00, seconded by Mr. Esquibel. Motion carried. Voting “yes” - all members of the governing body. (#7554)

[CA] Professional Services Agreement between the City of Cheyenne and HDR Engineering, Inc. for the Pedestrian Traffic Safety Study and HAWK System Design Project (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO) and A.V.I. p.c. for the Powderhouse Road Corridor Plan (MPO Federal Funds) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter for Animal Shelter Services (General Fund) – referred to Finance Committee.

Contract Modification #1 to Contract #7461 between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and West Edge Collective, LLC, for Public Engagement and Web Support Services (MPO Federal Funds). Mr. White moved to approve in an amount not to exceed \$5,000.00, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. (#7461)

[CA] Contract Modification #2 to Contract #7287 between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and Benchmark Engineers, PC, for the Walterscheid Boulevard Reconstruction Plan (MPO Federal Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$4,800.00). (#7287)

[CA] Contract Modification #2 to Contract #6445 between the City of Cheyenne and AVI Professional Corporation for additional design services for the 17th Street Lighting Project (Specific Purpose Sales Tax Overage Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$11,125.00). (#6445)

[CA] Consideration of Bid #E-30-22 for as-needed emergency snow control for the City of Cheyenne, Public Works Department (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from JTL Group Inc. d/b/a Knife River, Cheyenne, in an amount not to exceed \$300,000.00).

Request to expand seating area for consumption relating to City of Cheyenne microbrewery liquor license held by Freedom's Edge Brewing Co., located at 1509 Pioneer Avenue, Cheyenne, WY. Mr. White moved to approve contingent upon City Engineering, Building, and Planning & Development requirements being met, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body.

Public comment was made by Jim Ridgeway on the Voucher Report as presented.

Announcement was made of a Public Hearing to be held July 25, 2022, at 6:00 P.M. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a restaurant liquor license application filed with the City Clerk's Office for Los Aguacates Inc. d/b/a Tres Amigo Family Mexican Restaurant, 1802 Dell Range Blvd., Suite 2, Cheyenne, WY.

Public comment was made by Jim Ridgeway under other business.

The following members of the governing body made comments under other business – Dr. Aldrich, Mayor Collins, Mr. Cook and Mr. Johnson.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:48 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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